

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 669

BY CAYLER

AN ACT

RELATING TO CLOUD SEEDING; REPEALING SECTION 42-4301, IDAHO CODE, RELATING TO CLOUD SEEDING; AMENDING CHAPTER 43, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-4301, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING CLOUD SEEDING; AMENDING SECTION 42-605, IDAHO CODE, TO REMOVE A REFERENCE TO CLOUD SEEDING AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 42-1805, IDAHO CODE, TO REMOVE REFERENCES TO CLOUD SEEDING AND WEATHER MODIFICATION AND TO MAKE TECHNICAL CORRECTIONS; REPEALING SECTION 46-1015, IDAHO CODE, RELATING TO WEATHER MODIFICATION; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [42-4301](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 43, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-4301, Idaho Code, and to read as follows:

42-4301. CLOUD SEEDING. (1) The legislature finds that:

(a) Idaho's economy and the welfare of its citizens depend on a reliable and clean water supply;

(b) Data accumulated and analysis undertaken since the initiation of the cloud seeding program demonstrates that cloud seeding lacks provable outcomes. In 2024, the government accountability office found, "when uncertainty was considered in estimates of cloud seeding effectiveness, the estimated effect was not distinguishable from zero with a high degree of statistical confidence (e.g., with 95 percent confidence)"; and

(c) Cloud seeding, weather modification, and other forms of geo-engineering violate the Idaho constitution, section 1, article I, which provides for the inalienable rights of man, and that all men are by nature free and equal, and have certain inalienable rights, among which are enjoying and defending life and liberty, acquiring, possessing and protecting property, and pursuing happiness and securing safety.

(2) All cloud seeding programs along with all other weather modification activities are hereby prohibited and banned from occurring in the state of Idaho. Any and all aerial or ground-based cloud seeding projects or programs or any other form of weather modification shall be ceased indefinitely.

(3) Any person, including any public or private entity, who conducts cloud seeding or attempts a weather modification activity in violation of the provisions of this section shall be guilty of a felony punishable by five

1 (5) years in prison and a one-hundred-thousand-dollar (\$100,000) fine per
2 violation.

3 SECTION 3. That Section 42-605, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 42-605. DISTRICT MEETINGS -- WATERMASTER AND ASSISTANTS -- ELECTION
6 -- REMOVAL -- OATH AND BOND -- ADVISORY COMMITTEE. (1) There shall be held
7 on the first Monday in March in each year, except as provided in subsection
8 (2) of this section, a meeting of persons owning or having the use of a water
9 right in the waters of the stream or water supply comprising such district
10 that is assessed or proposed to be assessed by such district, which right has
11 been adjudicated or decreed by the court or is represented by valid permit or
12 license issued by the department of water resources.

13 (2) Such meeting shall be held at ~~some~~ a place within the water dis-
14 trict, or at ~~some~~ a nearby location convenient to a majority of those en-
15 titled to vote thereat. The director of the department of water resources
16 shall, at least twenty-one (21) days prior to the meeting date, send noti-
17 fication by regular mail to all persons, companies, corporations, or other
18 entities known by the director to hold rights that are assessed or proposed
19 to be assessed by such district, which right has been adjudicated or decreed
20 by the court or is represented by valid permit or license issued by the de-
21 partment of water resources, of the time, date, location, and purpose of the
22 annual meeting. At any annual meeting, the water users may vote to waive the
23 requirement for notice by mail and provide for notice to be given for future
24 meetings by publication of the time, date, location, and purpose of the meet-
25 ing in a newspaper or newspapers in general circulation in the district or on
26 the department of water resources website. Published notice in a newspaper
27 or newspapers shall be made once per week for two (2) consecutive weeks with
28 the second notice appearing at least fourteen (14) and not more than thirty
29 (30) days prior to the meeting. Notice on the department of water resources
30 website shall be posted at least twenty-one (21) days prior to the meeting
31 date. At any annual meeting, the water users may vote to change the date for
32 annual meetings in subsequent years to any day, except Saturday and Sunday,
33 between the second Monday of January and the fourth Tuesday of May. At an an-
34 nual meeting, the water users may adopt resolutions to assure or improve the
35 distribution of the waters of the district within state law and may provide
36 that such resolutions shall continue from year to year.

37 (3) At the meeting of the water users of a district, there shall be
38 elected a watermaster for such water district, who may be authorized to em-
39 ploy such other regular assistants as the water users shall deem necessary,
40 and who, upon appointment by the director, shall be responsible for distri-
41 bution of water within said water district. Notwithstanding any personnel
42 classification assigned to the watermaster and assistants pursuant to the
43 provisions of chapter 53, title 67, Idaho Code, the water users shall, prior
44 to the election of such watermaster and approval of the employment of as-
45 sistants, fix the compensation to be paid to them during the time actually
46 engaged in the performance of their duties.

47 (4) Voting shall be by majority vote of the water users present at the
48 meeting unless one (1) or more water users requests voting using the proce-
49 dure ~~which~~ that follows in this subsection. In such case, the meeting chair-

man shall appoint a credentials committee to determine the number of votes each water user present is authorized to cast. If requested, each person present who owns or has the use for the ensuing season of any water right in the stream or water supply comprising such water district that is assessed or proposed to be assessed by such district, which right has been adjudicated or decreed by the court or is represented by valid permit or license issued by the department of water resources, shall be entitled to a number of votes equal to the average annual dollar amount and any fraction thereof assessed for that person's qualifying water right for the previous five (5) years, or such lesser number of years as the right has been assessed. If a right has not previously been assessed, a person present who owns or has the use of the right for the ensuing season shall be entitled to a number of votes equal to the dollar amount and any fraction thereof that the right would have been assessed had it existed and been reasonably used when water was available under the priority of the right during the previous season. Absentee voting and voting by proxy are prohibited.

(5) At such meeting, the water users shall choose a meeting chairman and meeting secretary. The water users of any water district that collects or pays district expenses in accordance with section 42-613(3) or 42-619, Idaho Code, shall also elect a water district treasurer. Within five (5) business days after such meeting, the meeting chairman and meeting secretary shall forward a certified copy of the minutes of such meeting to the department of water resources. The meeting chairman, or the meeting secretary if the meeting chairman is not present, from the immediately preceding annual meeting shall call the meeting to order and preside over the election of officers for the meeting.

(6) At such meeting, the water users may choose an advisory committee to be composed of members selected as may be determined at the meeting, which committee shall serve as advisors to the director and the watermaster in matters pertaining to the distribution of water within the district. The advisory committee may be authorized to carry out policies as set forth in resolutions duly adopted by the water users at the annual meeting or at a special meeting. The advisory committee may also serve as the local committee to facilitate the rental of stored water if appointed by the water resource board for such purpose ~~under~~ pursuant to the provisions of section 42-1765, Idaho Code.

(7) A corporation or a water delivery organization, including but not limited to a water company, an irrigation district, an irrigation company, or a canal company, shall be considered a person for the purpose of this section and shall designate someone to cast its vote.

(8) Should said meeting not be held, or should said watermaster not be elected or the watermaster's compensation not be fixed as ~~above~~ provided in this section, then the director is authorized to appoint a watermaster and fix the watermaster's compensation.

(9) The director may remove any watermaster whenever such watermaster fails to perform the watermaster's duty, upon complaint made to the director in writing, by one (1) person owning or having the right to the use of a water right that is assessed by such district, which right has been adjudicated or decreed by the court or is represented by valid permit or license issued by the department of water resources, provided, that upon investigation, the

1 director, after a hearing with the other water users of said district, which
 2 shall be held in the district or at ~~some~~ a location convenient to the water
 3 users of the district, finds such charge to be true, and the director may ap-
 4 point a successor for the unexpired term.

5 (10) Before ~~entering upon~~ undertaking the duties of the watermaster's
 6 office, said watermaster shall take and subscribe to an oath before ~~some~~ an
 7 officer authorized by the laws of the state to administer oaths, to faith-
 8 fully perform the duties of the watermaster's office, as provided in section
 9 42-607, Idaho Code, and shall file that oath with the department of water re-
 10 sources. Upon appointment by the director, the actions taken by a watermas-
 11 ter in fulfillment of the duties of the office are covered by the state group
 12 surety bond as provided by sections 59-801 through 59-804, Idaho Code. A
 13 duly appointed watermaster ~~that~~ who is reelected in consecutive years shall
 14 not be required to take and file additional oaths with the department of wa-
 15 ter resources for each consecutive year the watermaster is reelected. If a
 16 duly elected or appointed watermaster resigns, dies, or is physically un-
 17 able to perform the duties of the office during the remainder of the elected
 18 or appointed watermaster term of service, then the director is authorized to
 19 appoint a successor for the unexpired term as provided in paragraphs (a) and
 20 (b) of this subsection.

21 (a) If a water district advisory committee has been chosen as provided
 22 in subsection (6) of this section, the water district advisory commit-
 23 tee shall meet to either nominate a successor watermaster or request a
 24 special meeting as provided in subsection (11) of this section to elect
 25 a new watermaster. Upon receipt of a nomination from a majority of the
 26 members of the water district advisory committee, the director is au-
 27 thorized to appoint the nominated successor watermaster for the unex-
 28 pired term.

29 (b) If a water district advisory committee has not been chosen, the
 30 director of the department of water resources is authorized to appoint
 31 a temporary successor watermaster. The temporary appointment extends
 32 through the unexpired term unless a special meeting is requested as
 33 provided in subsection (11) of this section and water users elect a new
 34 watermaster.

35 (11) The director shall call a special meeting of the water district
 36 upon receipt of a written request for such meeting from a majority of the mem-
 37 bers of the advisory committee for a district, a written request from water
 38 users representing thirty percent (30%) or more of the votes cast at the last
 39 regular annual meeting, a written request from the watermaster, or on the
 40 director's own motion if the director determines a meeting is necessary to
 41 address matters that cannot be delayed until the next regular annual meet-
 42 ing. Notice of the time, place, and purpose of the special meeting shall be
 43 given by the director in the manner provided in subsection (2) of this sec-
 44 tion, provided however, that a special meeting notice shall be sent at least
 45 fourteen (14) days prior to the meeting date.

46 (12) The water users may, by resolution, authorize the watermaster to
 47 acquire, hold, and dispose of such real and personal property, equipment,
 48 and facilities in the name of the water district as necessary for the proper
 49 distribution of water, administration of the water district, and enhance-
 50 ment of water supplies and shall provide that all such real and personal

1 property shall remain in the custody of the watermaster and the watermas-
2 ter's successor.

3 ~~(13) The water users may, by resolution, authorize the watermaster to~~
4 ~~develop, coordinate or provide, through contract or by other means, for~~
5 ~~weather modification projects involving cloud seeding that are designed to~~
6 ~~increase the water supplies of the water district by enhancing natural pre-~~
7 ~~cipitation and which conform to state water planning objectives.~~

8 SECTION 4. That Section 42-1805, Idaho Code, be, and the same is hereby
9 amended to read as follows:

10 42-1805. ADDITIONAL DUTIES. In addition to other duties prescribed by
11 law, the director of the department of water resources shall have the follow-
12 ing powers and duties:

13 (1) To represent the state in all matters pertaining to interstate and
14 international water rights affecting Idaho water resources; and to cooper-
15 ate with all agencies, now existing or hereafter to be formed, within the
16 state or within other jurisdictions, in matters affecting the development of
17 the water resources of this state.

18 (2) To prepare a present and continuing inventory of the water re-
19 sources of this state, ascertain means and methods of conserving and
20 augmenting these and determine as accurately as possible the most effective
21 means by which these water resources may be applied for the benefit of the
22 people of this state.

23 (3) To conduct surveys, tests, investigations, research, examina-
24 tions, studies, and estimates of cost relating to availability of unappro-
25 priated water, effective use of existing supply, conservation, storage,
26 distribution, and use of water.

27 (4) To prepare and compile information and data obtained and to make the
28 same available to interested individuals or agencies.

29 (5) To cooperate with and coordinate activities with the director of
30 the department of environmental quality as such activities relate to the
31 functions of either or both departments concerning water quality. Such co-
32 operation and coordination shall specifically require that:

33 (a) The director meet at least quarterly with the director of the de-
34 partment of environmental quality and his staff to discuss water qual-
35 ity programs. A copy of the minutes of such meeting shall be transmitted
36 to the governor.

37 (b) The director transmit to the director of the department of envi-
38 ronmental quality reports and information prepared by him pertaining to
39 water quality programs and proposed rules pertaining to water quality
40 programs.

41 (c) The director shall make available to the director of the department
42 of environmental quality and the director of the department of envi-
43 ronmental quality shall make available to the director all notices of
44 hearings relating to the promulgation of rules relating to water qual-
45 ity, waste discharge permits, and stream channel alteration, as such
46 directly affect water quality, and notices of any other hearings and
47 meetings ~~which~~ that relate to water quality.

1 (6) To perform administrative duties and such other functions as the
2 board may, from time to time, assign to the director to enable the board to
3 carry out its powers and duties.

4 (7) After notice, to suspend the issuance or further action on permits
5 or applications, including permits or applications for domestic purposes or
6 uses as defined in section 42-111, Idaho Code, required pursuant to section
7 42-227, Idaho Code, as necessary to protect existing vested water rights or
8 to ensure compliance with the provisions of chapter 2, title 42, Idaho Code,
9 or to prevent violation of minimum flow provisions of the state water plan.

10 (8) To promulgate, adopt, modify, repeal, and enforce rules implement-
11 ing or effectuating the powers and duties of the department.

12 (9) To seek a preliminary or permanent injunction, or both, or a tempo-
13 rary restraining order restraining any person from violating or attempting
14 to violate:

15 (a) Those provisions of law relating to all aspects of the appropria-
16 tion of water, distribution of water, headgates, and measuring devices;
17 or

18 (b) The administrative or judicial orders entered in accordance with
19 the provisions of law.

20 ~~(10) To develop, coordinate and provide, through contract or by other~~
21 ~~means, for weather modification projects involving cloud seeding that are~~
22 ~~designed to increase the water supplies of the state by enhancing natural~~
23 ~~precipitation and that conform to state water planning objectives. To ac-~~
24 ~~complish these purposes, the director is authorized to accept and use funds~~
25 ~~acquired through legislative appropriation or by gift, grant, contribution~~
26 ~~or funding received from any private or public individual or entity. All~~
27 ~~funds accepted under this provision shall be transmitted to the state trea-~~
28 ~~surer for deposit in the water administration account and shall be reserved~~
29 ~~and made available until expended as ordered by the director for weather mod-~~
30 ~~ification purposes determined by the director to be beneficial.~~

31 ~~(11) To develop and implement a plan for data gathering to determine any~~
32 ~~effect of the weather modification efforts in which the department is in-~~
33 ~~involved.~~

34 ~~(12)~~ (10) To receive, file, record, or retain documents of record on me-
35 dia other than paper.

36 SECTION 5. That Section [46-1015](#), Idaho Code, be, and the same is hereby
37 repealed.

38 SECTION 6. An emergency existing therefor, which emergency is hereby
39 declared to exist, this act shall be in full force and effect on and after its
40 passage and approval.